

ORIGINAL

(S E R V E D)
(DECEMBER 16, 1992)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

December 16, 1992

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.

JOINT MOTION TO MODIFY SCHEDULE GRANTED

Complainants and respondents have submitted their written direct cases according to the schedule previously established in this proceeding. Since those submissions, complainants and respondents have conferred on several occasions to discuss ways in which the oral hearing now scheduled to begin February 11, 1993, could be streamlined, including by stipulating as to facts and documents and by reducing or dispensing with the cross-examination of certain witnesses. Complainants and respondents also identified a number of procedural matters that must be resolved. Complainants and respondents believe that

attending to these procedural matters will substantially reduce the time required for the hearing.

The parties, therefore, submitted a joint motion seeking approval of the Presiding Officer to modify the existing procedural schedule. A copy of the proposed schedule, incorporating the requested modifications, is attached.¹

This case is unusually complex. All parties have proffered massive direct case submissions. The subject matter of much of the testimony is extremely technical. The attached schedule provides an orderly structure for identifying points of disagreement and providing for resolution of many of those points prior to the hearing.

Among the issues that the parties have identified to be addressed prior to the hearing, as enumerated in the proposed revised schedule, are: identification of possible hostile witnesses;² identification of those witnesses required for cross-examination; resolution of venue issues; pre-hearing identification of evidentiary objections to written direct testimony; development of stipulations; submission of errata to written direct testimony; and submission of non-evidentiary prehearing memoranda.

Complainants and respondents believe that the proposed schedule is in the interest of all parties and the Commission. The necessity of providing for additional procedural steps prior to the hearing also affects the hearing date. Under the proposed schedule,

¹The Military Sealift Command, intervenor, has been consulted and agrees to the proposed schedule.

²Complainants contend that hostile witnesses can be used and that such witnesses may be identified after submission of complainants' direct case, but prior to trial, and that previous procedural orders support their position. Respondents contend that identification of hostile witnesses should have occurred, at the latest, as part of complainants' direct case submissions and that the time for identification of such witnesses has passed.

hearings will commence on April 13, 1993. (A hearing date of April 13, 1993, avoids hearings during Passover/Easter week.)

Upon consideration of the Joint Motion to Modify Schedule filed by complainants on December 10, 1992,

IT IS HEREBY ORDERED:

That said joint motion is hereby granted; and

That the proposed schedule, dated December 10, 1992, attached to said joint motion, is hereby adopted. A copy of that schedule is attached to this Order.


Frederick M. Dolan, Jr.
Administrative Law Judge

ATTACHMENT

PROPOSED SCHEDULE

December 10, 1992

Dec. 15, 1992	Complainants' submission of interrogatories for respondents' experts; may include request for source materials
Dec. 17, 1992	(1) Identification by all parties of any hostile witnesses ¹ (2) With respect to all witnesses for whom written direct testimony has been submitted, identification by all parties of the witnesses they intend to cross-examine at the oral hearing
Jan. 14, 1993	Responses to interrogatories by respondents' experts
Jan. 15, 1993	Further information concerning previously identified hostile witnesses ²
Jan. 22, 1993	Submission to the Judge of proposal regarding the venue(s) of the hearing
Jan. 29, 1993	Objections to the proposed use of hostile witnesses
Feb. 16, 1993	(1) Circulation by all parties of errata to written direct testimony (2) With respect to all written direct testimony (including all exhibits and appendices thereto), identification by all parties of the specific portions as to which

¹ This is to include, for each hostile witness, an identification of whether the witness will be called to authenticate documents, to testify substantively, or in both capacities.

² This is to include, for each witness, (1) an identification of any document(s) the witness will be asked to authenticate or otherwise testify about, and (ii) a brief description of the subject matter of the witness' testimony. It is contemplated that parties will, to the maximum extent possible, attempt to stipulate concerning documents in order to avoid the need for calling certain witnesses.

they will oppose admission to the evidentiary record at hearing³

March 5, 1993 Submission of stipulations and identification of final list of witnesses included on the list submitted December 17, 1992, who will actually be called to testify

March 12, 1993 Submission by all parties of non-evidentiary prehearing memoranda

April 13, 1993 Oral hearing begins⁴

Hearing on direct testimony:

Examination of complainants' witnesses in accordance with the June 25, 1992 Order, venue to be determined

Examination of respondents' witnesses in accordance with the June 25, 1992 Order, venue to be determined

TO BE DETERMINED Rebuttal testimony:⁵

³ This is to include, with respect to each such portion, a specific identification of the grounds for opposition. This should include citation to any relevant authorities other than for routine evidentiary objections.

⁴ It is contemplated that the oral hearing will proceed continuously on federal government workdays until the direct case is completed, subject to the discretion of the Administrative Law Judge to order recesses as appropriate (including as necessary for any changes of venue).

⁵ Scheduling and conduct of the rebuttal case will be determined upon the completion of both sides' direct cases, except to the extent the parties agree that rebuttal will be handled in conjunction with a particular witness' cross and re-direct examination. Complainants and respondents currently disagree on the scope of rebuttal testimony. Complainants contend that rebuttal may consist of any testimony which responds to an adverse party's case. Respondents contend that rebuttal should consist only of testimony that is offered to contradict or to disprove facts offered by an adverse party during the adverse party's presentation of its direct case. Complainants and respondents will attempt to resolve their disagreement on this matter by the conclusion of the hearing on direct testimony.

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Complainants' rebuttal testimony --
direct, cross, and redirect examination,
venue to be determined

Respondents' rebuttal testimony --
direct, cross, and redirect examination,
venue to be determined

TO BE DETERMINED	Proposed findings and briefs ⁶
TO BE DETERMINED	Replies to proposed findings and briefs

⁶ A briefing schedule will be determined upon the completion of both sides' rebuttal cases.